DORMITORY ACCOMMODATION CONTRACT

Contracting parties

1) **University of West Bohemia**
represented by: ……
registered address: Univerzitní 8, Plzeň, PSČ 301 00
Institution ID No.: 49777513
TAX ID: CZ49777513
(hereinafter referred to as "UWB")

2) **.....**
birth number/date of birth:……..…..
ID card/passport No.: ……
address: ……
student of the faculty: ……
(hereafter referred to as the "Resident")

have entered into the following accommodation contract on the date, month and year indicated below, pursuant to Section 2326 et seq. of Act No. 89/2012 Coll., the Civil Code, as amended:

I.
Subject and period of accommodation

1. UWB undertakes to provide the Resident with accommodation for the agreed period of time for a fee - one bed in a room incl. accessories in the scope of the inventory list in

   room No..... in the building …… (block), …… (street) ……...(postal code, city), price category ……..

2. The Resident undertakes to pay the accommodation price (dormitory fee) and fees for services related to the accommodation to the Accommodation Provider in a due and timely manner.
3. Accommodation is arranged for a fixed period from.....to.....

II.
Rights and obligations of the contracting parties

1. UWB is obligated to hand over the accommodation to the Resident in a condition suitable for proper use and to ensure the undisturbed exercise of his/her rights associated with the accommodation. The condition of the handed-over facility according to the inventory list shall be recorded in the Handover and Acceptance Protocol, which shall become an integral part of this contract and shall be signed by both parties.

2. UWB is entitled, especially in the case of economic interest or in the case of renovations, to allocate to the Resident accommodation other than that specified in Article I Section 1 of this contract.
3. The Resident is obligated to move in no later than the deadline set by the accommodation schedule. If he/she fails to do so, this contract will automatically be terminated and the accommodation deposit will be forfeited to UWB.
4. The Resident may not transfer his/her accommodation or part thereof to another person without the consent of UWB.
5. The rights and obligations of the contracting parties are set out in this contract, Rector's Directive No. 19R/2024 and the Operating and Accommodation Rules.
6. The Resident must not prevent access to the room by personnel carrying out inspections in accordance with the Operating and Accommodation Rules.
7. UWB reserves the right to unilaterally change Directive No.19R/2024 and the Rector's Decision the Price List of Works and Services - the price for accommodation, the price of accommodation-related services, fees and penalties related to accommodation. The Resident is obligated to pay the new prices, fees and contractual penalties from the effective date of the change. In the event of a change to Directive No. 19R/2024 or the Price List of Works and Services as it relates to this Agreement, the Resident shall be entitled to terminate this Contract prior to the effective date of the changes. The period of notice shall be three months and shall run from the first day of the month following delivery of the notice to UWB. If the Resident terminates this Contract due to a change in Directive No. 19R/2024 or a change in the Price List of Works and Services in the part related to this Contract, the Resident shall be subject to the original provisions of Directive No. 19R/2024 and shall pay the price for accommodation, the price of services related to accommodation and the fees and penalties related to accommodation at the original rate. UWB shall give sufficient notice of the amendment to Directive No 19R/2024 and the Price List of Works and Services as it relates to this Contract on the website of the Accommodation and Catering Administration.

III.
Price for accommodation, accommodation-related service charges, other payments and payment terms

1. The price for accommodation (dormitory fee) and fees for services related to accommodation are listed in the Price List of Works and Services - Annex 1 to the Price List, published, among others, on the website of the Accommodation and Catering Administration at www.skm.zcu.cz. The price for accommodation and service charges associated with accommodation shall be paid by the Resident in accordance with the current Price List of Works and Services, as follows:
    a) by bank transfer to account no: 78887000/2700, SS: 7777, VS: .....;
    b) by card through the payment gateway set up by UWB.
2. The price for accommodation is payable monthly by the 15th day of the calendar month. In the case of payment by bank transfer, the decisive date is the date the payment is credited to the UWB account; in the case of payment by card, the date of the transaction is indicated on the relevant payment notice. In the event of delay in payment of the

accommodation fee, the Resident is obligated to pay a contractual penalty of 0.2% per day for each day of delay.

3. The contracting parties agree on an accommodation deposit (security deposit) in the amount of CZK 2,500. UWB confirms that the Resident has paid the accommodation deposit in full before signing this contract. UWB shall have the right to use the accommodation deposit to cover the Resident's monetary obligations related to the obligation to pay the accommodation fee if the Resident defaults in their payment, or to cover other monetary obligations of the Resident arising from this contract if the Resident defaults in their payment. In the event that the Resident does not move into the accommodation by the beginning of the relevant academic year, the accommodation deposit shall be forfeited to UWB in full.
4. If UWB uses the accommodation deposit to cover the obligations under the previous section, the Resident is obligated to supplement the deposit so that the total amounts to CZK 2,500 no later than 30 days after notification of the application of the deposit. The deposit, or part of it, if not used to cover the obligations of the Resident according to the previous paragraph in full, will be returned to the Resident once he/she has properly vacated the accommodation facility on the basis of his/her request submitted through the ISKAM account specified in the student's personal profile in ISKAM. In the event that the Resident no longer has access to ISKAM, he/she shall submit a request in paper form and UWB shall refund the reservation deposit paid to the account specified in the request. If the student applies for accommodation for the following academic year, the accommodation deposit is not refunded and becomes a reservation deposit. The contracting parties agree that the deposit will not bear interest. The deposit will not be refunded if it is verifiably proven that the Resident has an outstanding debt to UWB that is overdue.
5. If the Resident fails to properly vacate and return the accommodation space to UWB on the day of termination of accommodation, he/she is obliged to pay a contractual penalty of CZK 1,500 to UWB.
6. In case of violation of the Resident's obligation to maintain cleanliness and order in the room and the facilities, to maintain order in the common areas and to take care of the dormitory facilities, the Resident is obliged to pay a contractual penalty of CZK 700 for each individual violation of the obligation. The contractual penalty may be imposed repeatedly.
7. Contractual penalties are payable on the day following the day on which UWB is entitled to them. The contractual penalty arrangements are not without prejudice to the right of UWB to compensation for damages in full.
8. The Resident agrees to the use of the accommodation deposit for his/her other due obligations to UWB.

IV.
Terminating the Contract

The accommodation contract is terminated:

a) upon expiry of the agreed period,
b) by mutual agreement to terminate the contract,
c) in the event that the Resident has ceased to be a student of UWB. The student shall provide the Dormitory Manager with a certificate of termination of studies

d) by withdrawal of UWB from the Contract on the grounds that
   - the Resident is in arrears for more than 30 days in paying the accommodation fee or topping up the deposit,
   - the Resident violates his/her obligations under this Contract despite a warning; or
   - the Resident has violated his or her obligations in a particularly severe manner.

e) by giving three months' notice, commencing on the first day of the calendar month following delivery of the notice to the other party, whereby either party is entitled to give notice without giving any reason,

f) if the Resident does not check in by the deadline set in the accommodation schedule.

V.
Final provisions

1. The rights and obligations not expressly set forth in this contract are governed by Act No. 89/2012 Coll., the Civil Code as amended, Act No. 111/1998 Coll., the Higher Education Act as amended, and the internal standards of UWB - in particular Rector's Directive No. 19R/2024, the annex to which is the Operating and Accommodation Rules.
2. This Contract is concluded electronically, when the Resident expresses his/her consent to the Contract after logging into the ISKAM system.
3. The contracting parties declare that they have read this Contract before signing it, understand its contents, agree with its contents, and that this contract is the expression of their free will.

…… ……

UWB representative Resident